

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension Filed by:**

**MARTHA ELENA VALLEJO KAUFMAN, a Permanent
Certificated Employee,**

v.

SAN FRANCISCO UNIFIED SCHOOL DISTRICT.

OAH No. 2025081034

**ORDER DENYING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

(Ed. Code, § 44939, subd. (c)(4))

Administrative Law Judge Carl D. Corbin, State of California, Office of
Administrative Hearings, heard this motion by videoconference on September 19,
2025.

Moving party Martha Elena Vallejo Kaufman appeared representing herself.

Attorney Christine Lee appeared on behalf of the San Francisco Unified School District (District).

Procedural History

On July 30, 2025, a statement of charges was filed and served against Martha Elena Vallejo Kaufman, pursuant to Education Code sections 44932 and 44939, alleging a total of three causes for dismissal, including immoral conduct and willful refusal to perform regular assignments without reasonable cause as prescribed by reasonable rules and regulations of the District (willful refusal). The District placed Kaufman on immediate suspension without pay, pursuant to Education Code section 44939, based upon the immoral conduct and willful refusal allegations.

Kaufman filed a motion for immediate reversal of her suspension without pay, pursuant to Education Code section 44939, subdivision (c)(1). She argues that the District has not alleged a sufficient basis to place her on immediate unpaid status because: the allegations in the statement of charges lack factual support; there was a violation of due process because she was not provided union representation; the investigation into the facts underlying the statement of charges was unfair and incomplete; there are mitigating factors that were disregarded; and the penalty of dismissal is disproportionate to her misconduct.

The District opposes the motion.

Discussion

Education Code section 44939, subdivision (b), provides that a school district may immediately suspend a permanent certificated employee who has been charged with “immoral conduct” and/or with “willful refusal to perform regular assignments

without reasonable cause, as prescribed by reasonable rules and regulations of the employing school district.”

Pursuant to Education Code section 44939, subdivision (c)(1), “[r]eview of a motion filed pursuant to this section shall be limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section.”

The written submissions and oral argument of the parties have been considered. The statement of charges contains alleged facts that Kaufman twice spat on the face of a seven-year-old student in violation of District Board policies, administrative regulations, the teacher code of ethics, and the Education Code regarding discipline and treatment of students receiving special education services. These acts, if proven, establish cause for discipline for immoral conduct and willful refusal.

Based upon a review of the statement of charges, the District has alleged facts sufficient to constitute a basis for immediate suspension under Education Code section 44939, subdivision (b).

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ORDER

Martha Elena Vallejo Kaufman's motion for immediate reversal of suspension is denied. The District's immediate suspension of Martha Elena Vallejo Kaufman is upheld.

DATE: September 19, 2025

Carl D. Corbin

CARL D. CORBIN

Administrative Law Judge

Office of Administrative Hearings